

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, AUGUST 26, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**BANK OF AMERICA N.A. v. MARIA M. AMPARO
Case No. CL26-03552**

Motion for Judgment on the Pleadings

TENTATIVE RULING:

The unopposed motion for judgment on the pleadings by Plaintiff BANK OF AMERICA N.A. is GRANTED. Defendant AMPARO's answer admits the allegations in the complaint.

Judgment is for Plaintiff in the sum of \$4085.54. Plaintiff's memorandum of costs reflects costs of \$386.

The court will process the proposed judgment lodged with the court.

**TOM v. EDINGER
Case No. CU25-06789**

Motion by Defendants for (Anti-SLAPP) Attorneys Fees

TENTATIVE RULING:

Code of Civil Procedure § 425.16 does not require the parties to meet and confer before filing of an anti-SLAPP motion. (*Trinity Risk Management, LLC v. Simplified Labor Staffing Solutions, Inc.* (2021) 59 Cal.App.5th 995, 1008.)

Defendants who prevail on special motions to strike are entitled to an award of attorneys fees reasonably incurred in bringing an anti-SLAPP challenge. (CCP, § 425.16(c).) An award of attorneys fees to a prevailing anti-SLAPP defendant is mandatory. (*Zand v. Sukumar* (2026) 119 Cal.App.5th 1144, 1155; *Trapp v. Naiman* (2013) 218 Cal.App.4th 113, 122.)

The court reduces the amount of time claimed incurred on the anti-SLAPP motion and this motion for attorneys fees and costs, finding the reasonable number of attorney hours incurred on these motions is 40.0. At the claimed reasonable hourly rate of \$500, the court awards Defendants anti-SLAPP attorneys fees in the amount of \$20,000, and costs of \$120, for a total award of fees and costs of \$20,120.00.

Neither party appears to have filed case management conference statements for the 8:30 CMC2. No responsive pleading appears to have been filed as to the July 28, 2026 First Amended Complaint.

Parties shall meet and confer. Plaintiff shall take the lead in submitting a joint case management conference statement. The joint statement shall identify the name of a mediator and a stipulated discovery schedule.

On its own motion the court continues the CMC2 to October 1, 2026 at 8:30.

Laura Mei Eytan, et al. vs. Joshua Russell, et al.
Case No. CU25-07545

Motion to Compel Responses to Discovery and Deem Request for Admissions Admitted

TENTATIVE RULING:

Moving party's motion to compel discovery responses is GRANTED. Plaintiff LAURA MEI EYTAN shall respond without objection to the Form Interrogatories (Set One), Special Interrogatories (Set One), Request for Production of Documents and Things (Set One) within 20 days of service of this order. Plaintiff is deemed to have waived all objections.

As to the motion to deem matters admitted, Plaintiff EYTAN is deemed to have admitted each request in the Requests for Admission (Set One) and the genuineness of each document in Request for Admissions re Genuineness of Documents (Set One).

Pursuant to Code of Civil Procedure section 1010.6 and California Rules of Court, rule 2.251, the Solano County Superior Court adopted Local Rule 20.2 effective January 1, 2025, which mandates e-filing and e-service by attorneys in all civil matters. Attorney Roundy's failure to maintain an accurate email address as reflected on his complaint or minimally with the State Bar is akin to his failure to notify the court and an opposing party that he has moved and has a new mailing address. As counsel of record for

Plaintiff, it is his duty and his alone to maintain adequate contact information with the court and opposing counsel.

Moving party is awarded \$2,500 in reasonable attorneys' fees and costs as sanctions due and payable by Plaintiff and Plaintiff's counsel jointly and severally within 30 days.

Moving party is advised that multiple discovery motions should not be combined into a single filing. (See [Govt. Code § 70617\(a\)\(4\)](#) (setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing); see also Weil & Brown, Civil Procedure Before Trial, [8:1140.1] at 8F-60 (The Rutter Group 2011) ("Motions to compel compliance with separate discovery requests ordinarily should be filed separately.") In the future, the court will not take action on an omnibus motion. Defendant to submit an order after hearing and is excused with compliance with Rule of Court, 3.1312.

HILL v. SMITH
Case No. CU26-03851

Demurrer

TENTATIVE RULING:

Parties to appear. Defendant's motion fails to give notice of the court's tentative ruling system as required by Local Rule 3.9(d).

Defendant Smith's unopposed demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Plaintiff's personal injury action is barred by the statute of limitations. The statute of limitations for any injury caused by the wrongful act or neglect of another is two years. (Code Civ. Proc. § 335.1.) Plaintiff alleged that the automobile accident that caused his injuries occurred on October 6, 2023. (Complaint, §§ MV-1, GN-1.) Plaintiff did not file his action until April 23, 2026. The running of the statute of limitations appears "clearly and affirmatively" from the date alleged. (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324; *Lockley v. Law Office of Cantrell* (2001) 91 Cal.App.4th 875, 881.)

Plaintiff has made no attempt to meet his burden of showing "in what manner he can amend the complaint and how that amendment will change the legal effect of his pleading." (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990) 219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens' Inst. Int'l* (1989) 212 Cal.App.3d 1393, 1408.)

GREWAL, ET AL. v. PUREWAL, ET AL.
Case No. FCS054119

Motion for Attorneys' Fees

TENTATIVE RULING:

The unopposed motion for post-judgment attorneys fees of \$11,688.50 and costs of \$1,763.55 is GRANTED. Pre-judgment fees were awarded pursuant to Health and Safety Code section 15657.5. (CCP § 685.040.)

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002